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Is Nuisance Abatement "Broken Windows" Policing?

Searching for Code Enforcement's Impact on Crime

A Dissertation

Presented to the Faculty of the

Department of Public Policy and Administration

West Chester University

West Chester, Pennsylvania

In Partial Fulfillment of the Requirements for the Degree of

Doctor of Public Administration

By

Shane G. Diller

May 2023

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Dedication

This work and the entirety of my scholarly pursuits is dedicated to my family. My wife Deborah, son Jack, and daughter Reagan who put up with my absence and inattention as I completed my schooling later in life than most. The focus of my studies in Public Administration and Criminology is intended, in my own small way, to help make their world a better and safer place, now and into the future.

Acknowledgements

In completing this work, I want to acknowledge the support and assistance of those who, without their help, I would not be crossing this finish line. To the teachers who have guided and taught me over all these years, from Mr. Tom Rutten, through my undergrad and MPA program professors Dr. Callahan and Dr. Wright, to all of my professors in the DPA program and Criminal Justice Department at West Chester University, thank you for being as support, educational, and informative as you were patient. To my dissertation committee, Dr. Bernard Martin, Dr. Matthew Wheeler, and committee chair, Dr. Angela Kline thank you for providing your time, expertise, and guidance. Your critical feedback and reassurance were invaluable as I worked to explore my research and tried to produce something both academically insightful while at the same time useful in a practical sense.

Abstract

This study examines possible correlations between city code enforcement strategies and crime rates. Specifically, it asks: Is the work performed daily by city code enforcement departments, a Broken Windows Theory policing strategy?

To understand these possible connections, this study selected 30 medium-sized California cities, identified common elements of their code enforcement operations believed to be representative of how robust or active their programs were. Data was collected using both open-source, internet-based documents (such as budget documents and strategic plans) and from a survey sent directly to code enforcement staff. The survey consisted of 7 questions about code enforcement operations from 2019. The year 2019 was selected because it was pre-pandemic and before the civil unrest many cities experienced in 2020 that significantly impacted city operations and strategies, in California; factors that could skew responses from later years.

These elements were analyzed using backward regression in IBM SSPS to identify and measure the strength of any correlations between the selected elements of code enforcement operations and the selected cities' crime rates. The results of the regression test found no statistically significant correlations between the code enforcement operational elements selected and the cities' crime rates. Considering the extant Broken Windows and place-based crime literature, these findings could infer that the mere existence of a code enforcement program will not impact crime rates. Instead, the way code enforcement is used, and specifically its coordination with law enforcement, is where the crime reduction benefits of code enforcement could be found.

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List of Acronyms

ANOVA-	Analysis of Variance
BWT-	Broken Windows Theory
CACEO-	California Association of Code Enforcement Officers
CPTED-	Crime Prevention Through Environmental Design
DOJ-	Department of Justice
FBI-	Federal Bureau of Investigation
ICC-	International Code Council
ICMA-	International City/County Management Association
KPI-	Key Performance Indicators
NIBRS-	National Incident-Based Reporting System
NYPD-	New York Police Department
POP-	Problem Oriented Policing
RAT-	Routine Activities Theory
SPSS-	Statistical Package for the Social Sciences
UCR-	Uniform Crime Reports

Chapter 1: Introduction

The issue of crime ranked as one of the primary issues U.S. voters were concerned with in the November 2022 election (Gramlich, 2022). While police reform remains at the forefront of a national public policy debate (Kanno-Youngs & Broadwater, 2023). The search for effective crime prevention methods that depart from traditional policing strategies has been at the forefront of criminal justice reform discussions since the death of George Floyd at the hands of Minneapolis police in 2020. Additionally, the efficacy of Broken Windows Theory (BWT) policing has been challenged both in its outcomes and its equitable application (Kelling & Coles, 1998; Kohler- Haussman, 2018). These challenges have spurred cities seeking to address crime and disorder to search for additional tools at their disposal beyond traditional crime prevention strategies such BWT and community-oriented policing.

In addition to working to reduce crime rates, cities also seek to minimize disorder and improve the quality-of-life of their residents. Quality-of-life issues range from vacant or abandoned buildings, to blighted neighborhoods filled with abandoned vehicles, trash and debris, and graffiti. The work cities perform to address these issues is commonly done through nuisance abatement programs, typically managed by a city's code enforcement department. But what is code enforcement and does the daily work of code enforcement act as a "Broken Windows Policing" complement?

Background

Code Enforcement is the function of local government that seeks to ensure that a community is clean, healthy, and safe. These code enforcement departments work to obtain compliance with property maintenance standards, business operation regulations, and prevent disorderly activities through criminal prosecution, administrative enforcement such as fines,

fees, and civil court actions (lawsuits). This work is often performed by city staff called code enforcement officers that are not police officers, but do have the authority to issue citations, tow vehicles, or execute warrants. The work of code enforcement officers fits well into what Lipsky describes as street-level bureaucracy, enforcing anything from property maintenance regulations regarding high grass, to broken down vehicles (on private properties or public streets) (Stallone, 2020). Code enforcement officers enforce zoning laws governing the permissible uses of private property or construction regulations related to building and fire safety (Lipsky, 1980).

Code enforcement has been credited with providing an indirect benefit to cities as one element of BWT policing strategies (Schilling & Hare 1994). This correlation would make sense when you consider that the underlying principle of the Broken Windows Theory is that serious crime is prevented when intervention of minor offenses or disorder occurs. The goal of code enforcement departments is to address minor offenses and disorder related to property unsightliness or maintenance (such as literally a broken window on a vacant property), unpermitted business activity, or use of land and buildings in violation of adopted standards. It is unsurprising that code enforcement officers are commonly asked to participate in Problem-Oriented Policing (POP) efforts as part of the multidisciplinary approach to solving ongoing crime and disorder issues these specialized police units are charged with resolving (Braga, et al., 1999). These efforts have proven effective, both in the cases described by police leaders, but also in criminology literature. Going back to the 1990s, studies of nuisance abatement or code enforcement efforts combined with traditional policing methods have shown to have an impact on violent crime and drug activity (Eck & Wartell, 1998; Braga, et al., 1999).

Problem Statement/Research Question

But does the regular, daily work of code enforcement in these efforts really impact crime in their cities? If so, is this effectiveness derived from how the collaborations between police officers and code enforcement staff were focused or work executed? Or does merely a city having a code enforcement function performing nuisance abatement on a regular basis impact crime rates, regardless of the focus, or resources?

This research study explores whether nuisance abatement efforts by local governments have some correlation to a city's crime rates. Could nuisance abatement by code enforcement officers be an alternative in some cases or an effective supplement broadly to a city's use of more traditional BWT policing strategies? With local government striving to find effective ways to create public value from the services it provides, and those efforts being challenged through by the acts of public servants that cause a loss of trust in government, exploring ways that different government functions can collaborate to create this needed value are increasingly important (Kelly, 2005; Bryson, et al.., 2014). To answer this question, this study explored the work of code enforcement officers in cities in California and using information about their operations and methods looked for any statistically significant correlation between the levels to which code enforcement functions were staffed and resourced, the strategies they employed, and the city's overall crime rate.

Could local governments reduce their crime rates and experience better outcomes related to crime prevention in their jurisdictions through the use of nuisance abatement work (defined as "Code Enforcement" in California penal and government codes) (Leginfo.ca.gov, n.d.)? The formal responsibility of local government for responding to and preventing crime dates back to the late 1600s (Potter, 2013). The role of night watchman,

which evolved into the job of police patrol officer in the early 19th Century, has been a staple service of developed cities since its inception. These roles in the United States have always been a function of city government.

Although a primary function of cities, government at all levels in democratic societies assumes the challenge of employing policies and tactics to prevent crime, while also ensuring that these actions respect the rights of citizens. In the United States, police work has changed over the years, increasingly with the aim of creating safe and livable communities beyond the traditional role of detecting and investigating crime. This convergence of the work police perform with these non-traditional activities can overlap with the work of other departments, like code enforcement. Though efforts like Problem Oriented Policing will see police officers applying strategies to address crime that can be duplicative of the nuisance abatement treatments code enforcement officers use (lot cleaning, vacant building securing, etc.), the two jobs are distinct in local government. It is rare that you find code enforcement officers working inversely, enforcing criminal law unrelated to property conditions like police typically do. The overlap of these responsibilities and shared goals between police and code enforcement are reinforced through previous studies demonstrating that you do not find neighborhoods with high levels of disorder, that also have low levels of crime. The two appear to be interlinked (Skogan, 1986).

Significance of the Study

In the last two decades of the 20th Century, cities experienced violent crime across the U.S. at historic levels, creating renewed interest in crime reduction strategies (Zimring, 2012). This struggle for improvement in crime rates and safety saw a shift away from tactics focused on violent or serious crime and toward preventing minor crimes or

addressing quality-of-life issues. The thinking behind this change was that addressing these minor issues would keep more significant criminal activity from happening. This strategy is known as Broken Windows Theory (BWT) policing. BWT altered police officers' focus toward issues like panhandling, public transit fare evasion, graffiti prevention, and other vagrancy type offenses (Bratton & Knobler, 1998; Skogan, 2022), with the belief that addressing these low-level offenses would prevent more serious ones from occurring.

BWT has been successfully implemented across the United States, most notably in New York City where violent crime dropped by 80% between 1990 and 2009 after BWT strategies were implemented (Zimring, 2012). Building on the success of BWT policing, this research explores whether an extension in the philosophy behind this crime reduction theory can be drawn to other non-police efforts of local government that work to address quality-of-life issues which commonly overlap with the focus of BWT. This study looks for potential correlations between the quality-of-life efforts cities' code enforcement departments make and those cities' crime rates.

By examining information from local governments in California about how code enforcement operates, how well-resourced their nuisance abatement functions are, and looking for correlations between those elements of code enforcement operations and the cities' crime rates. Through a statistical correlation analysis with the selected cities' crime rates as the dependent variable and operational factors such as code enforcement department funding and staffing levels, enforcement strategies, and the focus of their efforts as the independent variables, this examination sought to find whether or not statistically significant, positive influences on crime rates (reductions in the overall rate) could be found.

Definition of Key Terms

Before investigating the impacts of code enforcement or nuisance abatement on crime, these terms and others important to research and analysis like this should be well defined. For the purposes of this study, the following terms below will be used as they are defined below:

Abatement: The correction or removal of a code violation, typically an action or condition that constitutes a nuisance or blight (Schilling & Hare, 1994, p.98).

Broken Windows Policing: A strategy of enforcement focused on disorder in an effort to prevent said disorder from increasing crime rates (Wilson & Kelling, 2006, p.168)

Blight: Land or property that is dilapidated, unsafe, or unhealthy (Gordon, 2004).

Code Enforcement: The function of a city that addresses conditions specifically adopted into their local ordinances. It is most common that these conditions related to blight, health, or safety standards relating to property maintenance and business operations (Stallone, 2020, p. 47).

Nuisance: An action or blighted condition at a particular location negatively affecting a community or neighborhood (Schilling & Hare, 1994, p. 137).

Police: The department of a city that enforces criminal law through the means of arrest, or citation (Potter, 2013).

Quality-of-Life: The peace of mind residents, businesses, and visitors experience when the community they occupy experiences low levels of disorder and fear of crime is low (Bratton & Knobler, 1998; Maple & Mitchell, 1999).

The Code Enforcement Function

If residents of a city are asked what services their city provides, responses about police, fire services, street repairs, and garbage collection will be common. Better informed residents or those involved in specific industries might also add services like building inspection or public works like storm drain management. Far less common is an awareness of the existence, or the understanding of, code enforcement and the work of nuisance abatement that it performs. Code enforcement being a function of local government means that it can be approached differently from city to city. Although the various duties, department titles, or work styles may differ, there is a theme found in all code enforcement operations as one focusing on health, safety, or physical appearance concerns that the employing city has prioritized. These variations have led to the public view of the role of code enforcement as "kaleidoscopic", as in never quite the same view twice and often changing (Stallone, 2020, p. 51).

Over 6,300 people in the United States carry the title of "Code Enforcement Officer" (Zippia, 2023). This does not include local government employees with other titles or in other departments who also have a primary responsibility to enforce codes adopted by states or cities focusing on health and safety issues, such as the maintenance and upkeep of property, abandonment of vehicles, or business regulation. In California and many other states, these violations are commonly identified in local ordinances and state statutes as "public nuisances", meaning an action or condition which is detrimental to not just an individual, but a neighborhood or community as a whole (Leginfo.ca.gov, n.d.). Code enforcement officers often use administrative actions such as issuing notices advising property owners and businesses of the code standards they have violated and require these violations to be corrected in a certain period of time. Should the violations not be corrected in the timeframe provided,

code enforcement officers then employ various strategies to penalize the violator (administrative fines, fees for cost recovery, or criminal citations requiring a court appearance). Should these efforts to compel compliance still not cause correction of the conditions or actions found to violate the codes in question, the code enforcement officer often has the authority perform (or cause to be performed through the use of contractors or other city resources) the clean-up, demolition, or removal of the condition violating the standards of the adopted codes. This correction of a public nuisance is legally termed an "abatement" (Leginfo.ca.gov, n.d.). Hence the most common term for what code enforcement officers do on behalf of their cities to seek correction of these conditions is called nuisance abatement.

Nuisance abatement work can be a long process, involving many visits to a violator's property over months or years, as conditions are documented, notices are issued and compliance periods are waited out, and then legal proceedings are undertaken. Code enforcement departments report that most nuisances are corrected in a short period time with the violator voluntary correcting the condition after receiving the initial notice of the violation, but in an average of 13% of cases code enforcement and city legal staff require the use of the enforcement strategies mentioned above to compel compliance or lay the groundwork for the city to perform the corrections themselves (ICMA, n.d.).

This approach to the enforcement of local laws (synonymous with codes) is distinct and usually separate from the style in which police agencies perform their work of enforcing state laws. There are a small number of cities (2 of the 34 studied for this project) in which the city's police department takes on the work of nuisance abatement. Most commonly nuisance abatement is performed by non-police city staff in work groups that carry names like "code enforcement division", "neighborhood services department", or "community improvement".

Despite the different naming conventions, these departments all perform a similar type of work for their city, which is the nuisance abatement effort described here.

Intersection of Code Enforcement and Criminology

The profession of code enforcement has emerged as a distinct career, apart from the disciplines of law enforcement or building inspection which traditionally performed these types of duties until the 1970 and 1980s (Schilling & Hare, 1994). With code enforcement becoming a distinct function, the 1990s saw a recognition in the value of coordinating the work of police and code enforcement in addressing on-going crime and disorder at certain locations. In these efforts the nuisance abatement effort focused on long-term physical change at properties where the more immediate and shorter lasting police effort of making arrests and issuing criminal citations was not solely effective (Eck & Wardell, 1998; Braga, et al.., 1999; South, et al.., 2022). The emergence of POP as a complement to community-oriented policing efforts further saw coordination between police and code enforcement, as code enforcement was identified as an effective tool to address issues of blight and disorder at locations where police were experiencing recurrent crime (Braga, et al., 1999).

As criminology and crime prevention strategies evolved from BWT and POP in the 1990s, a greater focus on the study of the geographic aspect of crime and victimization has emerged. Interweaving what criminologists know from concepts like Social Disorganization Theory and Routine Activities Theory, the models of how best to impact an environment in order to reduce the likelihood that crime will occur now competes with more traditional crime prevention theories that focused on offender psychology and opportunity to victimize (Groff & Haberman, 2023). Strategies like Crime Prevention through Environmental Design

(CPTED) specifically focus on the built environment at selected locations experiencing crime. CPTED's impact is found in removing a potential offender's comfortability for committing a crime, a strategy born out of Routine Activities Theory wherein crime requires a victim, an offender, and an opportunity acceptable to the offender (Taylor & Gottfredson, 1986). Code enforcement's work in improving property conditions has been shown to help reduce locations where the opportunity needed for the crime still exists (Eck & Wartell, 1998; Branas, et al., 2018). Knowing this, the role that nuisance abatement can play in changing the physical environment would seem to fit as nicely into these crime reduction efforts as it does the more traditional lenses it is viewed from, those of public health, building safety, and community aesthetics.

Other place-based criminological studies where the focus of traditional police strategies has been focused on geographic places as the primary element of crime prevention have seen crime "hot spots" treated with additional attention such as increased officer visits or intensified foot patrols (Telep, et al., 2014; Ratcliffe, et al., 2011). As the extant literature on what has come to be known as place-based criminology demonstrates, the notion of focusing attention on places and not people, partially by improving the look and feel of a space commonly experiencing crime has been shown to be effective (Kondo, et al., 2018; South, et al., 2022). These studies, however, are not performed from the code enforcement perspective, and do not explore more broadly this function of local government as a potentially effective tool in compelling the property maintenance improvements sought. With the adoption of local code standards that require the improvement and on-going maintenance of private property these studies have found crime reduction effectiveness by improving the physical condition of specific geographic places, nuisance abatement and enforcement of these codes can reinforce

improvements long after the encouraging results of these randomized trials have been published.

Does this positive impact, that studies like Kondo, Braga, and South have found, exist only in the micro-geographic locales through the direct impact of their experiments? Experiments, where what is otherwise called nuisance abatement, demonstrate a significant positive impact on crime. But, by employing the thought process derived from BWT strategies, does in fact the everyday work of code enforcement officers have a measurable impact on their city's crime rates in the macro? This research project seeks to answer these questions. Is simply having a nuisance abatement function operating in your city a criminological benefit or are the studies where blight reduction, abandoned building abatement, or lot greening examples where the code enforcement function must be closely coordinated with the efforts of police to positively impact crime?

Summary of Study and Findings

To better understand what impacts code enforcement might have on crime, research is needed to look for correlations between the work of code enforcement and crime. Specifically, this study performed a backward regression test of crime rates and nuisance abatement resources/strategies in California cities with populations between 100,000 and 200,000. The regression test was looking for strong correlations between the selected data points representing code enforcement operations and reductions in crime. The hypothesis asks whether nuisance abatement enforcement activities (assumed to be the base level treatment for disorder addressed by the Broken Windows Theory with support from numerous experiments conducted related to hot spot and place-based crime studies) can reduce crime rates. The results

of the test found no statistical significance between the nuisance abatement resources and strategies selected and the cities' crime rates.

Chapter 2: Literature Review

Introduction to the Literature

What does the literature tell us about the possibility that nuisance abatement could impact crime? Previous research demonstrates that local governments can improve crime reduction efforts through the application of Broken Windows Theory (BWT) or other place-based policing strategies that are not performed by sworn police officers. These studies have shown that applying nuisance abatement or code enforcement methods in combination with the traditional criminal enforcement methods used by police departments demonstrates a measurable improvement in criminal activity, including reducing violent crime. With this study exploring whether there is an impact from code enforcement work (through nuisance abatement) in achieving crime reductions, understanding the extant literature for BWT, and nuisance abatement is critical. Beyond these two disciplines, the study of place-based criminology and how code enforcement work could be closely tied to its efforts to approach crime from a location focused approach instead of an offender or victim focused study provides additional data points to consider and possible strategies to test.

The use of non-police city staff to address conditions leading to criminal activity (or in minor cases the offenses themselves can also be viewed as a possible improvement to community policing strategies. Recent history has shown how a segment of a community can view certain actions and outcomes as police overreach (to describe it mildly), which results in civil unrest, strained local government-community relations, and ultimately increases in crime (Howell, 2016; Torres, et al.., 2018). One high-profile example of how using a nuisance abatement approach to resolve minor crimes currently targeted by BWT policing is

the case of Eric Garner. In 2014 Garner was contacted by New York City police officers for allegedly selling cigarettes without a license (Marcus, 2016). The police strategy of detention or arrest was used, resulting in Garner resisting arrest and being killed during the arrest. The unpermitted business activity of selling cigarettes without a permit is a circumstance that could be resolved through administrative nuisance strategies, specifically code enforcement or nuisance abatement staff contacting Garner to advise him the activity must cease and at most issuing him a fine for the activity (notably a fine would likely have been the same end result should Garner have survived his arrest by police). Critics of the nuisance abatement strategy may assert that simply advising Garner to cease rather than making an arrest or allowing him to be contacted by city staff that he could have simply ignored was insufficient. Criticism that allowing Garner to just leave the scene without penalty would not be a satisfactory consequence to create a long-lasting cessation of this minor criminal offense. This study's hypothesis presupposes that nuisance abatement aims not to punish offenders but to see corrected nuisance activity or improved physical conditions (like the removal of blight) at specific locations. The literature shows these improvements can result in both their primary aims of less disorder, improved esthetics, and more stable communities as well as reductions in more serious criminal activity or violence (Branas et al., 2011; Kondo, et al., 2018).

Had the contact with Garner ended in him fleeing or simply stopping the activity for the time, the result nuisance abatement is seeking would have been achieved. Police would still have remained an available option should the nuisance abatement approach become ineffective, and a criminal strategy needed to be applied, as might be needed to address repeat or chronic offenders.

Broken Windows Theory

Much has been written (both academically and commercially) on the effectiveness of BWT policing. The March 1982 *Atlantic Monthly* article *Broken Windows: The Police and Neighborhood Safety* (Wilson & Kelling, 1982) proposed the theory that when minor issues like graffiti or vandalism are ignored it creates an environment that permits more severe offenses and violence to occur. James Q. Wilson, a public administration professor, and George Kelling, a criminology professor, proposed the Broken Windows Theory as a blueprint for addressing criminal behavior through attention to minor issues. They use the metaphor of a building to represent a community. The example is explained that when a building has minor maintenance issues (which Kelling and Wilson call "disorder"), such as a single broken window, this demonstrates a circumstance that, if left unfixed, shows a lack of care for the building. This lack of care presents to others that the building and its environment are open to increasingly worse acts of disorder and ultimately crime. The original article and subsequent writings by Kelling, former New York City Police Commissioner William Bratton, and others, illustrate the success that communities can have in lowering crime rates through identifying minor actions that represent the" broken windows" in their neighborhoods and dealing with those issues. Bratton was the first well-known proponent of using BWT on a grand scale. In the early 1990s, he served as the Superintendent of the Boston Police Department, Commissioner of the New York City Transit Police (then a separate agency from the NYPD), and ultimately as New York City Police Commissioner. Bratton authored *Turnaround: How America's Top Cop Reversed the Crime Epidemic* (Bratton & Knobler, 1998), a memoir illustrating his use of BWT to improve crime in Boston and New York City. Obviously, Bratton's memoir is favorable to

him and the BWT strategy, with a less than the critical viewpoint of previous New York City efforts that were leading up to crime reduction or any negative impacts that BWT might be causing, still his memoir does provide a detailed exploration of the philosophy behind BWT policing and the measurable gains it helped to bring to New York City (Bratton & Knobler, 1998).

One of Bratton's senior commanders, NYPD Deputy Commissioner Jack Maple, authored his own memoir *Crime Fighter* (Maple & Mitchell, 1999), chronicling both his success in applying BWT strategies in New York City and how BWT spread to other large cities. Maple's book also covered how BWT can be misapplied when he illustrates the missteps cities can make by focusing on unpopular zero-tolerance policies instead of implementing BWT strategies that residents support. Maple acknowledges that "quality-of-life" enforcement (arrests and citations for minor offenses), while driving down crime statistics, can result in more complaints being filed against police as citizens experience what they feel are excessive or overly aggressive tactics applied to normally law-abiding people. Some cities using BWT strategies that have seen reductions in crime accompanied by corresponding negative impacts to community relations have modified their approach to what Maple calls "quality-of-life plus" policing (Maple & Mitchell, 1999, p. 412). In "quality-of-life plus," less random zero-tolerance tactics are used, more warnings are given to violators that do not pose a more significant threat, and community cooperation becomes an important element of the strategy. Maple's explanations and the concept of "quality-of-life plus" policing strategies support my hypothesis that BWT strategies can be modified to less aggressive methods while still seeing the crime rate declines cities are pursuing.

In the late 1990s, other literature began to emerge that presented mixed reviews of how BWT strategies were working. One of the original BWT authors, Kelling himself, wrote *Fixing Broken Windows: Restoring Order and Reducing Crime in Our Communities* with Catherine Coles (1998), in which they acknowledge the unintended consequences that come from the use of BWT strategies as well as make recommendations on how to counter those issues, using BWT in the best way possible. Kelling and Coles acknowledge that police are needed to intercede in the serious criminal activity that a small percentage of the population engages in. BWT involves more than intercepting serious criminals before they can do serious harm.

BWT includes non-police strategies, such as the effort that was undertaken to remove and prevent graffiti in New York subways; done to create a more welcoming environment for legitimate subway users. The strategy was to "return" this public space to the riders and make it more uncomfortable for the criminal element. This strategy involved the whole of the transit system, with everyone from train operators to maintenance staff prioritizing the deterrence and removal of graffiti (Kelling & Coles, 1996). This not only improved the look and feel of the subway system, but the system also saw a 30% drop in serious crime after the anti-graffiti strategy was adopted (Maple & Mitchell, 1999). These types of nuisance abatement activities are precisely the model from which this study approaches its hypothesis. Efforts by property owners in partnership with code enforcement staff to improve the overall environment have been shown to positively improve the crime rate and should be able to be replicated.

In *The City That Became Safe: New York's Lessons for Urban Crime and Its Control* (Zimring, 2012), Franklin Zimring provides a very detailed statistical analysis of the positive impacts BWT policing (and specifically minor offense enforcement and order-maintenance

strategies) had on reducing crime in New York City. Zimring also includes a section detailing the lessons other cities can learn from the New York City success. One of these lessons directly complements the study undertaken in this project. Zimring finds that minor offense enforcement (graffiti, vandalism, vagrancy arrests) had a greater impact on improving crime rates than did more aggressive and controversial BWT tactics such as "stop-and-frisk." Zimring calls for additional study of minor offense enforcement's impact on crime rates when not combined with other felony enforcement or aggressive street patrol tactics (Zimring, 2012). This research project performs such a study, although not through the lens that Zimring envisioned. This comparison of nuisance abatement emphasis on crime rates replaces Zimring's assessment of misdemeanor arrests as minor offense enforcement with code enforcement nuisance abatement as that treatment strategy. As in the Eric Garner case previously referenced, employing only criminal enforcement strategies can result in unnecessary confrontation that in a small number of circumstances leads to physical injury or death.

Quality-of-life policing aims not to punish or rehabilitate offenders, but to minimize disorder that has been deemed unacceptable by society and codified in law (such as unpermitted business activity like Garner was engaged in) (Sampson & Raudenbush, 2004). The use of nuisance abatement strategies instead works to cease disorder through methods that do not result in the confrontation that criminal enforcement brings, such as detentions, arrest, or incarceration.

Critics of the nuisance abatement strategy may point out that without the threat of arrest, quality-of-life crime violators may ignore other enforcement efforts (notices, fines, etc.) or flee with no effort at apprehension. What those critics are missing is that even the

criminal enforcement strategies applied to quality-of-life violations do not typically result in imprisonment or arrest, only rising to that level when the police doing the enforcement are resisted. Nuisance abatement strategies causing offenders to leave or relocate have accomplished ceasing or displacing the disorder activity, the same as the criminal enforcement would, but without the possibility that the encounter devolves into a physical confrontation. For this reason, replicating Zimring's thought process with code enforcement replacing criminal enforcement of quality-of-life violations should provide local government managers with a strategy to maintain order and reduce crime without commonly forcing unnecessary confrontations with minor offense violators.

The final reading this research relies on that falls squarely in the support for BWT camp is from a heavyweight in the study of community policing, Wesley Skogan. In his essay *Broken Windows: Why and How We Should Take Them Seriously* (2008), Skogan illustrates how disorder and crime are inextricably linked, just as described in Wilson and Kelling's 1982 article. Skogan uses the fact that in Chicago community meetings held with police, where residents came to discuss crime in their neighborhoods, a plurality of the concerns expressed (36%) were related to disorder concerns such as strewn trash and graffiti (Skogan, 2008, p.198). This fact, Skogan argues, leads police officers squarely into the realm of addressing issues commonly already tasked to code enforcement in most cities. Although the appropriate use of police resources and a clear division of labor between city departments is not the focus of this paper's research, the situation Skogan raises complements this study. He points out that through BWT efforts police officers now find themselves assigned to "problem-building" patrol and performing non-enforcement type functions such as neighborhood cleanups and graffiti covering events with volunteers (Skogan, 2008).

Certainly, these efforts could provide a better connection between police and their communities, but a robust code enforcement program would complement and lessen the concerns that lead to these other duties as assigned that police officers have to take on.

Broken Windows Criticism

In the 21st century, greater criticism of BWT began to emerge, challenging both its effectiveness and the unintended consequences it can bring. Statistics showing the effectiveness of BWT on crime rates and violence appeared to have settled the question of BWT's validity (Bratton & Knobler, 1998) (Kelling & Coles, 1998) (Maples & Mitchell, 1999) (Zimring, 2012) (Bratton & Knobler, 2021). An article authored by economist Stephen Levitt *Understanding Why Crime Fell in the 1990s: Four Factors that Explain the Decline and Six that do not* disputes that creative enforcement and crime prevention techniques led to the crime reductions New York City and others saw in the 1990s (Levitt, 2004). In this article, he proposes that crime reductions seen around the U.S. in the 1990s had little to do with innovative policing strategies like BWT, but instead were the result of four factors: increases in the numbers of police, increases in incarceration rates, the recession of the crack epidemic, and (mostly controversially) an increase in numbers of abortions.

Levitt makes convincing statistical arguments that support his assertions that broader societal changes were the drivers of crime reductions. Specifically, regarding the improvements in New York City, Hope Corman and Naci Mocan write in *Carrots, Sticks, and Broken Windows* (2005) that the deterrence brought by more aggressive BWT policing strategies were found to have a greater positive impact on crime rates, than did economic improvements like lower unemployment and higher wages. Corman and Mocan used a

monthly time-series analysis of data from 1974-1999 from New York City to compare economic indicators such as wages and unemployment rates against crime rates. They then applied the independent variable of BWT policing implementation (measured through misdemeanor arrests) and the size of the NYPD to see if the BWT strategy more directly correlated with the reductions in crime. Their study found that BWT policing methods were a more significant contributing factor in explaining the dramatic crime reductions in New York City in the 1990s than economic variables. Thus, Corman and Mocan acknowledge that economics and other societal variables also contribute to reduced crime, but not to the measurable degree the implementation of BWT policing made.

More recently, *The Broken Windows of the Bronx: Putting the Theory in its Place* (Ansfield, 2020) asserts the foundations of the original theory have only a single empirical source, a 1969 study by Phillip Zimbardo in the Bronx, NY, and Palo Alto, CA. Zimbardo, a social psychologist, is best known for administering the Stanford Prison Experiment. This experiment studied the behavior of incarcerated individuals and those acting as their "guards" using student volunteers. Unfortunately, the experiment quickly resulted in abusive behavior between participants and ended abruptly after just six days. Though not related to crime prevention study, Zimbardo, as the principal investigator, has received wide criticism for the experiment's methodology and ethical concerns (Le Texier, 2019). Although Ansfield's article questions the basis of Wilson and Kelling's theory, the more than two decades of lower crime rates in cities where BWT has been employed, clearly demonstrate its efficacy as a crime reduction strategy (Zimring, 2012), albeit one with corresponding negative consequences to police/community relations (most notably and deeply in lower-income communities of color) (Howell, 2016).

More recently, peer-reviewed articles have been published illustrating the continued negative impacts BWT policing has had on low-income areas and communities of color. A 2016 article, *The Never Ending Tale: Racism and Inequality in the Era of Broken Windows* (Oberman & Johnson, 2016) and *The 'Broken Windows' Theory and the New York Experience Reconsidered* (Fulda, 2010) both explore the disparate impacts that BWT policing have had on minorities and low-income communities. In *Misdemeanorland: Criminal Courts and Social Control in an Age of Broken Windows Policing* (2018), Issa Kohler-Hausmann documents the negative impacts that BWT policing (and specifically minor offense enforcement as a criminal matter) have on otherwise law-abiding citizens whose minor infractions were targeted by police as part of "quality-of- life" policing.

These and other articles explore the application of BWT and different crime prevention strategies (such as stop-and-frisk) in ways, that although they may show positive impacts on crime rates and violence, disproportionately find people of color the subjects of stops and arrests. This disparity then leads to a deepening distrust of police by these communities (Epp et al.., 2016). This distrust and its linkage to the actual or perceived over-policing of minority communities, most notably African American communities are detailed in two articles: *Beyond Profiling: The Institutional Sources of Racial Disparities in Policing* (Epp, et al.., 2016), and *Race, Place, and Effective Policing* (Braga, et al.., 2019). These articles illustrate the wedge that aggressive policing strategies like BWT have driven between American communities and the police, which drives my research question about whether non-criminal methods to address the issues targeted by BWT policing can achieve the same gains while avoiding the tactics that disproportionately punish people of color and low-income populations. The literature exploring the negative impacts and unintended

consequences of BWT strategies is motivation for this research project. Recognizing that one of the primary aims of local government is public safety, local governments must seek out effective tools to provide that safety. When the tools used have a significant disparate impact on portions of the population, improvements must be sought. This study aims to provide one of those improvements using nuisance abatement through administrative enforcement rather than criminal penalties.

Place-Based Criminology

Additional policing strategies were developed in the 1980s and 1990s that were heavily influenced by BWT, or at a minimum closely complementary to it. Of these strategies, the most impactful on my research are Problem-Oriented Policing (POP) and Crime Prevention Through Environmental Design (CPTED [pronounced sep-ted]). POP and CPTED heavily focus on place-based criminal activity, much like nuisance abatement does. POP encourages police officers to address recurrent criminal activity through the use of a quasi-scientific strategy called SARA (Scan, Analyze, Respond, and Assess) (Braga & Weisburd, 2010 p. 154). CPTED approaches crime prevention using color, light, and physical features such as landscaping to discourage criminal activity or disorder (Schneider & Kitchen, 2013).

The geographic focus on crime and more specifically the search for place-based strategies that might block crime from occurring itself receives less than a robust hearing in criminology journals. A 2012 review of two major crime and policy journals found that up to 2010 neither journal had any content related to the criminology of places (Eck & Eck, 2012). Since then, place-based approaches to crime have received more attention, including

explorations of how regulatory, non-police, strategies could be implemented to reduce crime. One of these approaches is to consider crime as pollution. Pollution is regulated by non-police government employees that impose operation and place management rules on properties and businesses that ensure the actions of these properties do not pollute streets, streams, or the air around the business. In a similar manner, Farrell and Roman (2006) explain how crime and the actions of criminals could be regulated as "negative externalities" from certain locations. They propose treating those locations with regulatory requirements enforced by non-police actors of a city that require the management of the property or business be done in a way that crime does not fester in that location, negatively impacting the environment around it. It could be argued that the work code enforcement officers do already performs a similar function for cities and that by first ensuring that existing regulations are effectively enforced, adopting new regulations when appropriate, the regulatory approach to crime as a pollutant could be easily implemented.

The literature available on POP reinforces that recurrent crime at specific locations can be diminished or eliminated by focusing on remedies to the underlying causes of the crime. These underlying causes commonly fall into categories of minor offenses such as disorderly activity or property maintenance issues that can be addressed through nuisance abatement actions. Anthony Braga and others have authored several books and peer-reviewed articles on the effectiveness of POP programs and applying place-based policing strategies to positively impact crime. For example, in 2010 Braga and David Weisburd authored *Policing Problem Places: Crime Hot Spots and Effective Prevention*. In this book they report the findings of numerous studies showing that place-based policing strategies (what they refer to as 'hot spots') positively impacted crime rates in cities around the U.S.,

without displacing crime to other locations in the cities studied (Braga & Weisburd, 2010, p. 222). The SARA model employed in POP also acknowledges the need for non-police involvement in the "Response" phase of SARA. The strategy encourages police to look beyond their ranks and involve other agencies or entities that can best address the underlying causes of the recurrent crime (Braga & Weisburd, 2010, p. 154). Nuisance abatement staff are a natural asset to police when employing the SARA model and working to permanently end recurrent crime activity at a particular location.

CPTED is another strategy that focuses on reversing or preventing the minor offenses that BWT casts as allowing more serious criminal activity to take hold. But, where POP applies techniques that can require the intercession of police, CPTED takes an entirely different approach by ignoring the people that might be committing offenses and altering the physical place where crimes may occur. In *Putting Crime Prevention Through Environmental Design into Practice via Planning Systems: A Comparison of Experience in the U.S. and U.K.* (2013), Schneider and Kitchen explore the effectiveness of CPTED and how changing the environment by increased use of lighting, bright paint color selections in outdoor areas, and the use of "hostile" vegetation (such as thorny shrubs) to establish control over space subtly can discourage disorder and crime (Taylor & Gottfredson, 1986).

The CPTED strategy provides insight to my research that demonstrates how strategies other than conventional criminal enforcement can positively impact crime rates. Though CPTED traditionally focuses on the initial design or alteration of space, its principles can apply to the maintenance of space as well. Non-police actors working to improve places of recurrent crime could work with property owners or public entities to remediate blighted

areas in line with CPTED principles, thereby both abating the existing public nuisances and working to ensure long-lasting improvement.

Code Enforcement

The profession of Code Enforcement has literature focused on the mechanics and practices of performing this type of work. Schilling and Hare authored *Code Enforcement: A Comprehensive Approach* in 1994. Their work is a practical guide to successfully operating a code enforcement department and navigating the work of nuisance abatement. It also has a California-specific focus which is complementary to this study. It was also noteworthy that at the time of publication they state upfront how the work of code enforcement extends from the concept of Broken Window's policing (Schilling and Hare, 1994). Most recently the International Code Council (ICC), the organization that produces the most widely adopted set of model building codes in the world, has published *Basic Code Enforcement, Second Edition* (ICC, 2019), an updated practical text that focuses on the mechanics of code enforcement from the building inspection paradigm. Any theory or scientific support for the practices set forth in these two books is scant at best and provides little insight into how code enforcement is beneficial to the community as a whole. To find some foundation for the work code enforcement performs in the scientific literature a search of specific place-based criminology papers, as well as publications from legal journals, is needed.

The discipline of code enforcement has received far less attention in academia. Peer-reviewed articles that explore the positive impact local governments can have on residents' quality-of-life in using code enforcement or nuisance abatement are few. In papers like *The Effect of Neighborhood Based Code Enforcement in University Communities* (Evans-

Cowley, 2006) studies are performed from the urban planning paradigm to see how property improvements impact the attitudes levels of satisfaction residents hold after property improvements occur. While these types of studies are informative, they do not speak to the criminological benefits that code enforcement may have as a component of BWT policing.

The existing criminological literature applicable to this study primarily focuses on specific types of crime or particular types of locations. *America's Methamphetamine Crisis: Solving one of America's Leading Drug Problems Through Child Abuse and Nuisance Laws* (Smith, 2008) contains a section on how local nuisance laws can be a valuable tool in combating drug houses. The article *Improving the Management of Rental Properties with Drug Problems: A Randomized Experiment* (Eck & Wartell, 1998) includes the steps the San Diego Police Department took to involve that city's code enforcement department in spurring managers of problem properties to help clean-up the drug problems and crime present at their apartment complexes. In this case San Diego performed an experiment using a control group that received no interaction from code enforcement, just police; a second group that received more formal assistance from police; and a third group that received nuisance abatement work from code enforcement combined with formal education and action by police. The researchers found that locations that received the nuisance abatement approach combined with the traditional law enforcement application saw greater success in ending drug activity at those locations.

More recent experiments have focused broadly on the impact property maintenance, and nuisance abatement can have on criminal activity. These studies' findings were published in *Blight Abatement of Vacant Land and Crime in New Orleans* (Kondo et al.., 2018) and *Effect of Abandoned Housing Interventions on Gun Violence, Perceptions of*

Safety, and Substance Use in Black Neighborhoods: A Citywide Cluster Randomized Trial (South, et al.., 2022). In Kondo, researchers monitored criminal activity in the areas of blighted or vacant lots in the City of New Orleans in 2016-2017. A control group of the lots in question was established and received a nuisance abatement treatment by the city, effectively cleaning up the lots and removing any visual blight from the locations. The study reviewed crime rates and criminal activity near the lots both before and after the nuisance abatement treatment. The study found that although no significant change in violent or property crime rates occurred, a significant drop in the number of drug crimes near the remediated lots.

In South (2002), researchers conducted a cluster randomized trial between January 2017 and August 2020 in which selected Philadelphia. PA properties in areas experiencing gun violence were provided one of two possible interventions: structure rehabilitation (replacing of doors and windows), property clean up, and landscape improvements; or just property clean up and landscape improvements. A third control group was selected with no changes made to their property conditions. The results of this study found that the properties with the most physical improvement intervention saw significant reductions in crime and the properties with some, but less physical improvement saw a lesser (statistically nonsignificant) reduction in crime. These experiments provide direct application to this research project because one of code enforcement's primary charges is the upholding of property maintenance standards as adopted by the city they work in. Although Kondo and South do not explicitly use the term code enforcement or approach their work from that perspective, these studies demonstrate that improving the condition physical space does reduce crime.

American law reviews are also a source for literature and in some studies experiments or theory that could help guide the scientific pursuit of code enforcement's benefits. In papers like *A Co-production Model of Code Enforcement and Nuisance Abatement* (Blumenberg, et al.., 1998) effective community-code enforcement partnerships are explored from the principles of "co-production" mixing of efforts by the community as spurred by and in partnership with city code enforcement officials in maintaining property standards and reducing public nuisances. And in The University of Chicago Law Review, we find a study of community policing, *Prospects for Reform? The Collapse of Community Policing in Chicago* (Skogan, 2022). In this work, Wesley Skogan (often credited with seminal study in the concept of community policing from the early 1990s) details how police partnered with other city services (such as city inspectors, who although not titled in this paper as "code enforcement" were clearly that based on the descriptions of the work involved) to address neighborhood concerns brought forth through police community meetings (Skogan, 2022, p. 386). This paper clearly establishes that the work of code enforcement, as leveraged by police, has both criminological and community/police relationship benefits.

Associated Theory

With the field of code enforcement having a less than robust representation in the literature, I have turned to sociological and criminological studies that can provide science to help frame my research. The areas of Social Disorganization Theory and Routine Activities Theory both provide a foundation for studies that focus on disruptive behavior that can lead to crime and community actions that could be implemented to address the behavior before it escalates. A 2017 article *Integrating Social Disorganization and Routine Activities Theories and Testing the Effectiveness of Neighborhood Crime Watch Programs: Case Study of*

Miami-Dade County, 2007-15 (Louderback & Sen Roy, 2017) explores the impacts on burglary, robbery, and assault rates on communities after they implement non-enforcement community strategies, like neighborhood watch groups. This and similar studies on non-criminal methods used to positively impact crime rates can inform my research when applied to nuisance abatement as a non-criminal BWT strategy.

The criminological study of Routine Activities Theory (RAT) adds an additional layer of scholarship to my research. RAT theorizes that criminal activity occurs when an offender comes into contact with a potential victim in space and time and the opportunity and environment are free of safeguards for the victim (Braga & Weisburd, 2010). Michael Maxfield writes in *Lifestyle and Routine Activity Theories of Crime: Empirical Studies of Victimization, Delinquency, and Offender Decision Making* (1987) that offenders' lifestyles and everyday environments can be a predictor of their propensity to commit crimes. The nuisance abatement function of the government actively seeks to improve the environment of all people. As we see in the CPTED studies, improved physical environments deter and reduce crime.

The area of Social Disorganization Theory and its impact on crime goes back to the 1940s. Only in the 1980s did criminologists begin to more closely look at the ramifications this theory had on modern criminology. In *Social Disorganization and Theories of Crime and Delinquency: Problems and Prospects* (1988), Robert Bursik writes that neighborhoods provide a context and backdrop for individual behavior (both positive and negative). Neighborhoods and their quality are an essential charge of local government, one heavily carried by nuisance abatement programs partnering with residents to uphold health, safety, and aesthetic standards set forth by the community's ordinances and codes. The intersection

of BWT strategies such as POP, CPTED, and nuisance abatement to reduce crime and maintain quality-of-life in neighborhoods directly prevents the social disorganization that Bursik and others note can be a cause of criminal activity. In addition to Bursik, Charis Kurbin and Ronald Weitzer more recently wrote that modern application of Social Disorganization Theory should include the element of formal control of communities, specifically through the administration of regulatory codes. In *New Directions in Social Disorganization Theory* (2003) they expand on Social Disorganization's previous focuses on informal control through private control relationships and parochial control through interpersonal networks and community groups. Kurbin's and Weitzman's inclusion of formal control specifically speaks to the work that nuisance abatement programs perform. They also note that formal control does influence crime rates (Kurbin & Weitzman, 2003).

Sampson, Raudenbush, Kurbin, and Weitzman all lay the foundation for the belief that social control and the routine activities of criminals and victims support the idea that disorder leads to crime, places that are well managed can reduce the opportunities for crime, and the disorder that leads to fear of crime (Gua & Pratt, 2008). These concepts are woven together nicely by Xu, et al. in *Discovering the Impact of Community Policing: The Broken Windows Thesis, Collective Efficacy, and Citizens' Judgement*. (2005). In their paper, Xu and her co-authors assert that the role of police in deterring crime and apprehending criminals has morphed into disorder control in the era of Broken Windows and this change can negatively impact government-citizen relations. The literature on disorder and informal community controls commonly includes the types of property maintenance conditions (abandoned housing, graffiti, and accumulation of trash) that code enforcement is charged with addressing in the definition of disorder (Xu, et al., 2005). These connections motivate

the exploration of understanding how code enforcement's work impacts disorder that is credited with leading to crime.

Although Xu's findings support the BWT concept that disorder leads to less serious crime and less serious crime then leads to serious crime, they acknowledge that the role of police delving deeper into disorder-policing can increase conflict with police, eroding community/government relationships (Xu, et al., 2005). This understanding leads Xu and her co-authors to encourage that the collective efficacy of informal social control put forth by Sampson and Raudenbush (1997) still be taken into account when creating effective community policing models that Skogan (1992) asserts are needed for crime reduction strategies like BWT policing.

Conclusions from the Literature

Code enforcement itself having limited literature none of which are considered defining studies leading to a common body of knowledge that practitioners or local government leaders could draw from in understanding the best practices of a code enforcement program. This also leaves a hole in understanding what benefits can be drawn from operating a robust code enforcement program.

Taking this into consideration, this research builds on a foundation of literature that draws primarily from the field of criminology. Still, as illustrated in this review, that field contains a wide array of study that is directly beneficial to my hypothesis. Although the concept of nuisance abatement supporting or supplanting traditional law enforcement efforts in reducing recurrent crime is not yet widely studied with specificity, the literature that does exist is an excellent starting point for research like this study in exploring how code

enforcement impacts crime. It is reassuring that the seminal work this study is grounded in was developed collaboratively between a criminologist (Kelling) and a public administration academic (Wilson). This fact alone reassures that my study could be beneficial to both fields and potentially create additional paths of inquiry into improving the quality-of-life in communities through crime reduction efforts that see superior support than have traditional law enforcement efforts.

The literature connecting BWT to code enforcement is certainly not direct (at least in the use of the term "code enforcement") and at times requires an understanding that what is being described in criminological studies is in fact the work that code enforcement does daily. Once that connection has been established the epistemological path from Kelling and Wilson in 1982 to this study becomes clear. BWT establishes that disorder (such as a broken window left unrepaired) fosters an environment where potential offenders feel empowered to commit lesser crimes. Skogan (1992; 2022) well establishes that effective responses to disorder (he credits himself with coining this term) and crime involve community policing efforts that include cooperation between allied city services (like code enforcement) and police operations that reduce crime, often styled in a Problem-Oriented Policing strategy (Braga, et al., 1999). Sampson and Raudenbush (1997) demonstrate the indirect link between disorder and crime but assert that community informal control or "collective efficacy" also plays a role in limiting disorder and crime. The we find that despite criticisms of BWT strategies (Fulda, 2010; Kohler-Hausmann, 2018), Xu establishes (again not by name) that police can find effective BWT and community oriented policing assistance from partnerships with the community and other elements of local government in such a way that avoids

increased tension in an era of distrust in government, specifically the police (Xu, et al.., 2005).

Last, viewing the crime reduction benefits from Kondo (2018), South (2022), etc., shows through the work code enforcement performs, this multi-layered body of study insists upon a study of crime reduction benefits from the code enforcement paradigm.

Chapter 3: Methodology

Overview

This study researches the effectiveness of local government nuisance abatement efforts as performed by selected cities' code enforcement departments. Specifically, under examination is the potential for the work code enforcement departments perform to have a positive impact on the crime rates of their cities through these nuisance abatement efforts. To understand if nuisance abatement could be either a supplement to, or in limited ways a replacement of, more traditional law enforcement methods, this study looks for statistically significant correlation between certain factors of how cities perform their nuisance abatement function through the work of their code enforcement department and that city's crime rate.

Research Design and Approach

To answer the question of how code enforcement/nuisance abatement programs might impact crime rates, this study first performed a secondary analysis of publicly available information found in the selected cities' Uniform Crime Reports (UCR) data, cities' websites, and cities' budgets. That information was then complemented with additional details about how code enforcement operates. By asking management staff in the cities' code enforcement departments to respond to a survey seeking enforcement method and case management strategy specifics that help understand how one city might distinguish itself from another in the final analysis. This information was then analyzed using a linear regression test performed in IBM's SPSS.

Several elements of code enforcement operations have been selected as measurements (independent variables), which should demonstrate the effectiveness of their operations (in turn being most impactful on crime rates). These elements were also chosen as the meet the parametric assumptions necessary for a valid analysis of correlation (measured at the same time, ratio and ordinal, etc.). The selected independent variables are also factors that could vary between cities, providing validity to the correlation analysis findings, demonstrating whether each of these factors (or a combination thereof) demonstrate any statistically significant impact on the single dependent variable: the cities' crime rates.

Research Questions

There is one principal hypothesis to this study: Do nuisance abatement activities performed by code enforcement departments positively impact crime rates? The theme of Broken Windows Theory strategy focuses enforcement on minor, quality-of-life offenses that in turn help to reduce crime. This theory and the associated strategies are supported by the literature, but very little references code enforcement by name or in specificity, instead describing the actions that code enforcement performs (property clean-up, addressing vacant buildings, etc.) as the broken windows treatments.

This study seeks to test this hypothesis through a series of research questions focusing on the selected independent variables (elements of code enforcement programs demonstrating their aggressiveness or scope) impacts on the dependent variable (cities' crime rates). All of the research sub-questions follow the same formula: Does *X* (code enforcement department factor or action) positively impact *Y* (the city's crime rate)?

Independent Variables

The independent variables selected are:

1. 2019 Code Enforcement Department Budget
2. 2019 Code Enforcement Department Total Staffing
3. 2019 Code Enforcement Department Caseload
4. How proactive or reactive in addressing code violations is the department?
5. What department or area of government houses the code enforcement function?
6. What code violations/nuisances does your department address?
7. Methods used to enforce the codes.

All of the independent variables were selected due to their potential in demonstrating the workload intensity each city was putting forth, the resource commitment each city made to the daily code enforcement effort, and the nuisance abatement strategies or approaches the cities were employing to accomplish this work. In *Code Enforcement a Comprehensive Approach* (Schilling & Hare, 1994), the authors specifically advise code enforcement managers to consider their resources and strategic approach to addressing a jurisdiction's priorities. They state that proactive and specialized code enforcement programs may be more effective at accomplishing the will of their cities management or elected officials, although complaint-based or reactive enforcement best satisfies complainants. As this work is a practical guide for code enforcement staff, Schilling and Hare do not cite any authority for these beliefs, nor any science that shows the effectiveness of these strategies have been studied and proven.

Department Budget/Department Staffing

The first two data points selected for comparison were ratio type variables, as they directly quantify a specific number higher than zero. The budgets and staffing levels were

selected as variables likely to impact crime rates because these figures represent in the broadest sense the level of possible nuisance abatement activity the sampled city could perform. The assumption is made that the higher funding and staffing levels are, the better the ability to identify and respond to more disorder and nuisance activity. Using this rationale and the understanding drawn from BWT and Placed-based criminology literature that nuisance abatement is at its foundation Broken Windows policing (even when not performed by police) (Eck & Wartell, 1998; South, et al., 2022), a city looking to reduce its crime rates would see fewer crimes committed the more nuisance abatement activity they undertake.

Caseload

The case load data is another ratio variable and was selected to provide a comparison between cities that demonstrated what level of work resulted from the inputs of budget and staffing. To look at budget and staffing alone could provide incomplete information in cases where payrolls were high, staff was not busy, and the result of the first two independent variables did not result in the output of a corresponding rate of nuisance abatement case work. Comparing total caseloads in that year provides further detail to the analysis that could impact the findings.

Where these three variables above were whole numbers drawn from department records that required no transformation for analysis, the remaining variables required the creation of dummy variables in order to analyze them numerically in SPSS. These categorical variables (proactivity; what department oversees the function; types of nuisances enforced; and methods of enforcement) were important pieces of information to include in the consideration of how code enforcement impacts crime rates. To best understand how

various nuisance abatement strategies impacted crime rates, the variables of proactivity vs. reactivity; what departments or area of government the nuisance abatement functions operate out of; what particular code violations or nuisances the departments address; and what enforcement methods the cities used added a better level of detail as to what actions they take that might impact crime rates beyond just focusing on the high-level statistics found in the other three variables. Including this more qualitative information helped provide a depth of analysis that could better describe why certain correlations may (or may not) exist and possibly provide additional avenues of future investigation than had the study just included direct numeric information.

Proactivity Level

The factor of how proactive or reactive the selected departments are in performing nuisance abatement will be important to differentiate whether a particular approach to code enforcement is more impactful on crime rates than the other. The stance a code enforcement department takes on proactivity can be a sign of how aggressive the political environment is in seeking resolution to nuisances. For the purpose of this study "Proactive" means that their staff is actively out in their city looking for violations of their codes and the majority of their caseloads are produced in this way. "Reactive" means that most of their caseloads are generated in response to complaints from the public or referrals from other departments or agencies. The coding of this variable was done through a survey question that asked respondents to rank their proactivity level on a 4-point scale. Respondents were asked to report their proactivity as one of four options: "a" being only proactive; "b" being mostly proactive (some of their cases are reactive); "c" being mostly reactive (some of their cases are proactive); and "d" being reactive only.

This independent variable was primarily selected because previous research has shown that when nuisance abatement or code enforcement type activities are focused on areas of high crime the physical improvements to those areas have shown a measurable impact on certain types of crime (Kondo, et al., 2018; South, et al., 2022). It should stand to reason then that the more focused and proactive a code enforcement effort is on a regular basis, the more impactful it would be in reducing crime broadly.

Area of Government

The department or area of government that oversees nuisance abatement can be important to know because it might provide insight into whether one area of government is more effective at overseeing nuisance abatement, in turn positively impacting crime rates, than others. For instance, this variable might find that nuisance abatement functions housed in police departments are less impactful on crime rates than those performed by stand-alone code enforcement departments, or vice-versa. This study is not designed to try and explain why that (or any of the independent variables might produce the results they do) but instead establish the benchmark that they are correlated in some way, providing guidance for further study. For coding, these responses were grouped into 4 categories: 0 (Public Safety), 1 (Stand Alone), 2 (Community Development, 3 (Public Works), and 4 (Other- City Manager/Attorney, Parks and Recreation, etc.).

Types of Nuisances

What specific violations of code or nuisances the selected departments focus on provide an additional detail that could prove insightful into what actions code enforcement departments undertake that may reduce crime. Although the original Broken Windows article

included issues like blight and property maintenance as possible signs of disorder leading to crime (it is “Broken Windows” after all) (Kelling & Wilson, 1982), much of the operationalization of BWT has focused more on petty criminal activity such as turnstile jumping, aggressive panhandling, and graffiti tagging (Skogan, 2022). If one of the sample cities included in this study had shown a particularly significant reduction in crime that this study correlated to nuisance abatement, understanding what nuisances that city was focusing on would be important to know and study further to see if the finding could be generalized as strategies other cities could implement.

To establish this variable well, the survey used asked respondents to identify which of five types of nuisances (all that apply) the city sees is a focus of their nuisance abatement/code enforcement activity. These possibilities were: “a” Property Maintenance/blight; “b” Abandoned Vehicles; “c” Illegal/unpermitted business activity; “d” Unpermitted construction; and “e” Unlawful camping/vagrancy. There are other possible categories that could be included here, with these being selected as broad enough to capture the majority of the types of code enforcement cases California departments become involved in (CACEO, 2022). The categories themselves contain a number of different specific nuisance conditions or quality-of-life violations that code enforcement could focus on, but consolidating those into these categories provides the best possible variable creation that allows for testing different nuisances against the crime rate dependent variable. Should a particular nuisance category have shown significant impact on crime rates rather than the findings proving the null hypothesis, further study could have been done breaking down the various nuisance conditions that make up these categories, potentially providing greater insight into what strategies can be used for code enforcement to reduce crime.

For coding purposes, the responses this question were grouped into two categories "Specialized" and "Generalist" (coded as 0 and 1 respectively). Respondents identifying less than three areas of focus were classified as specialized code enforcement operations and those addressing three or more as generalist operations. This grouping was done to streamline the analysis and provide clearer insight into the distinction between operations (see the Findings in Chapter 4 for more on this analysis).

Methods of Enforcement

Knowing which methods are used to enforce the codes or perform the abatement of nuisances can help inform local government leaders about how to structure their programs. To establish this variable, respondents were asked to identify which action they undertook to enforce their codes or abatement their nuisances. California code enforcement departments have three methods available to them to adjudicate and process their cases loads. Those options are: criminal enforcement, similar to a traffic citation in which the offender is issued a citation that carries a fine or jail time for violation of the code; civil legal action, in which a city or county files suit against a violator who is violating code standards seeking court orders requiring the offender to cease an action or perform an action that corrects the condition violating the codes; or administrative, in which the city enforces code violations through a process set out in California Government Code Section 53069.4 in which they can issue fines, hold hearings, or obtain court orders to perform abatement actions through use internal processes managed and executed by city or county staff (Leginfo.ca.gov, 2022). Should the regression analysis have shown that one of these methods correlated to a significant improvement in crime rates, understanding that the identified approach was

valuable is important to policy makers and those looking to replicate this finding, either scientifically or operationally.

Dependent Variable

The Uniform Crime Report (UCR) is the program that almost all US cities use to track and compare criminal activity. The UCR has been the primary crime tracking system used by cities and the federal government since its development in 1930 (Strom & Smith, 2017). The UCR collects monthly summaries from America's law enforcement agencies, detailing crimes known to police and persons arrested for 10 categories of crime, known as Part I Offenses (Strom & Smith, 2017). This information is then coded and aggregated into a measurement of both crime volume and translated into a crime rate based on per capita tracking of crimes per 100,000 residents (Nolan, 2004).

The extant literature related to the validity of the UCR as a measure of criminal activity acknowledges its drawbacks, the most significant being one of underreporting. Since the early 1980s, other crime measurement tools, specifically victimization surveys, have consistently demonstrated that more than half of crimes committed go unreported to police (Gove et al., 1985). This fact is not seen to have an impact on the validity of this study since the UCR numbers being tested against are a consistent measurement used by each sample city to measure their crime. Should the sample cities (or future studied jurisdictions) move to a new crime tracking system in significant numbers (such as the growing adoption of the National Incident Based Reporting System [NIBRS] system administered by the FBI) that improved data could be used as the baseline comparison. As long as this and other studies

ensure that the crime measurement tool is consistent in all sampled cities, then the validity of its correlation to code enforcement efforts would be valid.

Methods

Web-based Data

The collection of data was performed via the internet and through a survey sent to sample city code enforcement department management staff. All of the sampled cities had budget, staffing, and some organizational information on their official websites. The more detailed information (related to proactivity levels, violation types, etc.) was collected through the survey responses.

Email Surveys

The non-numeric variables were factors not readily found on the cities' official websites. To gather the data necessary to explore those factors required contact with staff working in the departments to collect data on the operational differences between cities. These contacts were made using a standardized, IRB approved (see Appendices A and B) sent via email to city staff authorized to speak on behalf of the department. These emails were sent from a West Chester University email account to cities staff's publicly available email addresses. When necessary, phone calls were made to the same staff to clarify responses or to gather missing information.

Sample Selection

The sample selected to draw the data necessary for this analysis was medium-sized California cities (cities with populations of between 100,000 and 200,000). Cities were

selected as the layer of government to focus on both because their role in municipal services delivery dictates that code enforcement is likely a service they provide, and because crime tends to be most apparent and easily quantifiable at the city level (Glaeser & Sacerdote, 1999). This criterion allowed for a possible 47 cities to include in the study, a sample size that met the threshold of 30 comparisons needed for statistical validity (Abu-Bader, 2016). Out of the possible 47 cities meeting the study parameters, 35 survey responses were received, a response rate high enough for study. These cities were selected due to the likelihood that the circumstances, budgetary, and geo-political constraints they faced would be the similar among many of the cities. Cities of the size selected are large enough to potentially have resources available to commit to dedicated nuisance abatement functions. Larger cities were excluded due to the investigator's perception that large California cities tend to develop unique characters, challenges, and administrative styles that make their comparison to other large cities (or smaller cities) less generalizable and thus less reliable for comparison. In the cities selected, the information studied is more generalizable to other cities in the types of nuisances they face, the styles in which they may approach code enforcement, and their budgets and staffing levels being similar. The dependent variable selected is valid across any size city sampled, because the UCR system is managed by the Federal Bureau of Investigation and is uniformly reported by cities by crime classification type. This uniformity allows for city "A" to be compared to city "B" by what crimes they are reporting and what their overall violent, property, and combined crime rates are.

Although the independent variables selected will vary from city to city, they are good indicators as to the level of resource committed to the action of nuisance abatement as well as being information specific to each city that is not dictated by a state or federal mandate

that would cause the data to be overly normative. All of the data used can be simply coded and analyzed to determine if a statistically significant and discernable correlation can be found between the dependent variable and the independent variables. The information making up these variables is also a public record and should have been easily obtainable for scalability. These factors all reinforce the validity of the variables selected and the findings of the analysis.

The year 2019 was selected as the time frame to study data from for three reasons; first, keeping the data collection related to budgets, staffing, and caseload to a single year provides for a simpler and more accurate examination of information. Rather than averaging these figures over multiple years, with the potential for spikes or deficits in particular years that can create uncertainty in the comparisons, analyzing a single year provides a pure comparison. Yearly data is also how the dependent variable of UCR stats is collected. To attempt to analyze these data sets over multiple years combined or averaged weakens the analysis and any direct comparisons or correlations that may be found. Second, 2019 is prior to 2020, a year that saw historic events that directly impact the activities of local government being studied. The occurrence of Covid-19 in early 2020, the killing of George Floyd at the hands of Minneapolis police, and the economic crises brought by both of these unprecedented events significantly impacted society, local government and law enforcement agencies in a number of ways that would make using that year (or subsequent years) problematic (Stickle & Felson, 2020; Konisky & Nolette, 2021).

Ethical Concerns

Striving to safeguard the anonymity of the sampled cities specific data was a consideration in performing this study. Although the data used is public record or publicly available through inquiry at the sampled cities, it was not the intent of this project to scrutinize any particular city regarding their crime rates or support for effective code enforcement. The potential for professional or political embarrassment exists should a particular city be identified as performing poorly in any part of this research. For that reason, the data coding and reporting was detailed in a manner that does not label or identify cities by name. It is acknowledged that through the information presented the city being analyzed could be identified if one performed a search of those data points in comparison to possible cities, however the findings presented here do not make those identifications as the aim of this study was not to scrutinize any particular jurisdiction. This study only seeks correlations and significance between the work of code enforcement and police departments at the macro level, with the intent that the information could broadly guide public managers and policy makers, not challenge the operation of any particular agency. To ensure that the surveys and data coding sheets remain anonymous labels were given to each survey (e.g., “City #1”, etc.). The tracking and coding of responses and information gathered from internet searches used this same naming convention. These actions minimized potential harm from this research.

Analysis

To study the impacts of these variables, a backward linear regression test was performed using IBM’s SPSS system to find if any correlations or significant affect by the elements of code enforcement operations or strategy selected were observed on the same

city's crime rate. The linear regression test was selected as the best method to predict correlations in addressing crime through nuisance abatement because of this studies use of numerous ratio and categorical variables tested against the dependent variable, both individually and in combination with each other. This test also produced a Pearson's correlation test and ANOVA looking for statistical significance, a benefit over running these tests independently.

The answers to the survey questionnaire were broken down into twelve variables for SPSS testing. The answers to questions #3 regarding proactive versus reactive enforcement, #5 regarding what department oversaw code enforcement, #6 regarding the what violations the respondent's department addressed, and #7 about what method(s) of enforcement the respondent's department used became were entered into SPSS as dummy variables testing each response possibility that was received in the surveys. (See Table 4.4 for an illustration of this breakdown).

This study was of a cross-sectional design, performing a secondary analysis of previously gathered police and code enforcement data, contained in their reports and case files, in combination with responses to the survey. The primary intent here was observational, searching for possibilities rather than testing a specific experiment. Being a secondary analysis prevented the researcher from exhibiting any influence over the studies data, as this was a comparison of information points gathered after the fact and had no bearing on sampled cities code enforcement operations or reported criminal activity.

Validity

A concern regarding the validity of the data and analysis does exist. There are variables to this research that remain unaddressed by the data selected and the proposed method. These relate to the study's sample and the selection of the operational points used as independent variables. The number of cities selected was relatively narrow; the geography was specific, focused just on California; and the independent variables were selected based on the researcher's knowledge of the code enforcement and law enforcement professions, grounded by indirectly related previous studies, such as the Minneapolis and Sacramento hot spot experiments, and South's study of abandoned housing and gun violence correlations (Sherman & Weisburd, 1995; Telep, et al., 2014; South et al., 2022).

The selection of the variables was based on the foundation that these metrics were demonstrative of how much effort each city was putting forth in performing nuisance abatement and enforcing property standards codes as well as metrics that would vary between cities putting forth an aggressive effort as opposed to those taking a more passive approach. Similar metrics are used in The International City/County Management Association's (ICMA) benchmarking project, where they attempt to find commonality among municipal service delivery models to establish best practices and strategies lower performing cities might learn from higher performing ones (ICMA, n.d.). These variables were also selected through guidance from principles of performance management in which inputs (staffing, enforcement stance, and budget) are combined with outputs (case load, type of enforcement) to understand outcome (crime rates) (Hatry, 2006).

This is important when trying to extrapolate the findings of previous place-based crime experiments to the daily work performed in a similar vein by each city. This thinking could be flawed and other metrics or factors could be applied that may be more representative of the work code enforcement officers are performing.

The timing and resources available for this study limited the scope. Further research could be conducted, adding additional cities to the analysis. The geography could be expanded beyond California. The sample size being limited to California cities did allow for certainty in the uniformity of governing laws and procedures, allowing for a more valid comparison, but expanding the geography studied beyond California would allow for an exploration of whether that governance helps or hinders the work of code enforcement in comparison to the legal and political environments code enforcement departments function in elsewhere.

Significance

When collaborations can be found between city functions (such as between police and code enforcement) that assist in serving the public better, those partnerships should be supported. With crime steadily being one of the top concerns for Americans since the 1960s (Zhao, et al.., 2015), local government leaders are tasked with providing effective crime reduction and prevention strategies. When you include the factor that police departments capture the largest percentage of city budgets, using efficient methods to impact crime is a necessity. Understanding how code enforcement, through their regular daily work of nuisance abatement, can potentially benefit another sector of government, like police work, should be of significance to local leaders. This study explored that collaboration more

broadly than previous works and more specifically focused on how code enforcement operates than the extant literature does. Where previous research has focused on specific actions in specific locations or collections of locations (Weisburd, 2016; Moyer, et al., 2019; and Kondo et al., 2018), this study's search for a crime reduction impact derived from the daily work of code enforcement appears to be a first. One that could establish a new area of inquiry for both public administration scholars and criminologists.

Greater generalization through further and replicative study of this research would help continue to look for significant relationships between nuisance abatement and crime. These studies will be explored further in Chapter 5 and would be critical since other findings that may assist local government leaders in using non-police strategies for combating crime or improving the operations of their nuisance abatement functions are an under-developed area of study.

Chapter 4: Findings

The results of this study were surprising and informative, although not in the way expected. What was thought to be easy to obtain data was found to be hard to get and a struggle to obtain a high enough response rate to the survey for statistical validity. In brief and as detailed here, the correlations expected between cities operating code enforcement programs and crime rates were not found. This research study proved the null hypothesis that the general operation and daily work of code enforcement does not impact crime rates and therefore cannot be considered a function contributing to BWT policing efforts. Although the study's findings do not reinforce that code enforcement or nuisance abatement can be considered a crime prevention element on its face, the identification of measurable elements of code enforcement work and collection of data points on how the cities studied fund, staff, and perform this work provides insight to the field of code enforcement. Commonalities about the industry can be drawn from the responses and used for further study.

Before breaking down the findings and exploring the commonalities, a description of the analysis methods is needed. Once a sufficient amount of information was collected, the variables were analyzed to identify any statistically significant correlations between the elements of code enforcement operations selected and an impact on the associated cities crime rate. Proving the null hypothesis would find that no significant correlation existed between the elements selected and the crime rate. This finding would not cast doubt on the benefit of code enforcement or nuisance abatement as a function, but instead provide questions as to whether the elements of code enforcement operations selected were appropriate to demonstrate significance, present an understanding that perhaps the mere existence of a code enforcement function alone does not impact crime, and provide avenues

to explore regarding what benefits code enforcement departments to provide to their jurisdictions and citizenry.

Any finding of statistical significance between the factors studied would also require further exploration. Identifying that a factor (say "Enforcement Methods") was found to positively impact a city's crime rate would have only shown a correlation and not causation. Further study would have been required to explore causation in a more certain way. Again, the intent of this study was to broadly explore the impacts of code enforcement work on crime rates. Establishing foundational understandings of how code enforcement departments operate and what commonalities exist is important for practitioners seeking a better understanding of nuisance abatement work or possible ways to benchmark and improve that work. Specifically, had there been a finding the selected variables could be shown to connect Broken Windows Theory policing and code enforcement work in a broad sense, this would have provided insight into only a single paradigm through which code enforcement could be viewed, but not the only potential benefit to a robust code enforcement program.

For this study in evaluating the impact that code enforcement programs have on a cities' crime rates, the selected data was tested using backward linear regression in IBM's SPSS. The dependent variable being the cities' (n= 35) 2019 crime rates and the twelve independent variables having been created from the responses to the seven survey questions outlined in the methods section (Chapter 3) (See Table 4.4). The test results showing whether any one (or more) of these independent variables had a statistically significant influence on cities' crime rates are illustrated in Table 4.1. A positive impact on cities' crime rates would be demonstrated in the SPSS report by how close to "1" for positive impact (crime reduction) or "-1" for negative impact (crime increase) the selected variables represented on the

correlation table (See Table 4.1). This table from the regression test output would have illustrated any statistical significance that the code enforcement operations elements had on crime rates in at a measure of p=< .05

As Table 4.1 shows, none of the selected criteria showed a powerful correlation or statistically significant impact to cities' crime rates. The analysis shows that "Caseload" has both the closest to a significant impact on crime rates at (p= .147), and greatest correlation to crime rates at (B=.183), both of these results still well below the accepted threshold of .8 in determining a scientifically likely correlation and p= .05 for statistical significance (Abu-Bader, 2016).

Table 4.1

Correlations Between Selected Code Enforcement Elements and Crime Rates

Pearson Correlation	Variable Label	To Crime Rate 2019
	Budget 2019	0.123
	Staffing 2019	0.086
	Case Load	0.183
	Case Priorities	-0.032
	React only	0.155
	Proactive	-0.081
	Mostly react	-0.068
	Public Safety (PS)	0.01
	Community Dev (CD)	-0.089
	Stand Alone (SA)	0.048
	Dept. Other	0.086
	Criminal	0.019
	Admin	0.064
	Mixed	-0.068
Sig. (1-tailed)		
	Budget 2019	0.241
	Staffing 2019	0.313
	Case Load	0.147
	Case Priorities	0.429
	React only	0.187
	Proactive	0.323
	Mostly react	0.349
	Public Safety (PS)	0.478
	Community Dev (CD)	0.305
	Stand Alone (SA)	0.392
	Dept. Other	0.311
	Criminal	0.458
	Admin	0.357
	Mixed	0.349

Tables 4.2 (Model Summary) and 4.3 (ANOVA) also illustrate the findings of the regression test proving the null hypothesis, with none of the p factors (shown in the "Sig." column of Table 4.3) coming close to the < .05 level needed to demonstrate statistical significance of impact on cities' crime rates by the code enforcement elements tested.

Table 4.2

Model Summary

Model	R	R Square	Adjusted R Square	Std. Error of the Estimate	Change Statistics				
					R Square Change	F Change	df1	df2	Sig. F Change
1	.365a	0.133	-0.281	0.043090709	0.133	0.322	11	23	0.973
2	.365b	0.133	-0.228	0.042184725	0	0.001	1	23	0.97
3	.363c	0.132	-0.181	0.041366263	-0.001	0.039	1	24	0.844
4	.361d	0.13	-0.138	0.040605071	-0.002	0.052	1	25	0.822
5	.346e	0.12	-0.109	0.040087099	-0.011	0.316	1	26	0.579
6	.331f	0.11	-0.081	0.039580144	-0.01	0.296	1	27	0.591
7	.316g	0.1	-0.055	0.03910977	-0.01	0.315	1	28	0.579
8	.293h	0.086	-0.036	0.038746184	-0.014	0.445	1	29	0.51
9	.269i	0.072	-0.017	0.038400452	-0.014	0.449	1	30	0.508
10	.241j	0.058	-0.001	0.038082739	-0.014	0.473	1	31	0.497
11	.183k	0.033	0.004	0.0379944	-0.025	0.847	1	32	0.364
12	.000l	0	0	0.038071026	-0.033	1.137	1	33	0.294

a Predictors: (Constant), Mixed, Reactonly, Proactive, SA, DeptOther, Criminal, Case Load, PS, Budget 2019, Case Priorities, Staffing 2019

b Predictors: (Constant), Mixed, Reactonly, Proactive, SA, DeptOther, Criminal, Case Load, PS, Budget 2019, Case Priorities

c Predictors: (Constant), Mixed, Reactonly, Proactive, SA, DeptOther, Criminal, Case Load, PS, Budget 2019

d Predictors: (Constant), Mixed, Reactonly, Proactive, SA, DeptOther, Case Load, PS, Budget 2019

e Predictors: (Constant), Mixed, Reactonly, SA, DeptOther, Case Load, PS, Budget 2019

f Predictors: (Constant), Mixed, Reactonly, SA, DeptOther, Case Load, Budget 2019

g Predictors: (Constant), Mixed, Reactonly, DeptOther, Case Load, Budget 2019

h Predictors: (Constant), Reactonly, DeptOther, Case Load, Budget 2019

i Predictors: (Constant), Reactonly, DeptOther, Case Load

j Predictors: (Constant), DeptOther, Case Load

k Predictors: (Constant), Case Load

l Predictor: (constant)

Table 4.3

ANOVA Results

Model		Sum of Squares	df	Mean Square	F	Sig.
1	Regression	0.007	11	0.001	0.322	.973b
	Residual	0.043	23	0.002		
	Total	0.049	34			
2	Regression	0.007	10	0.001	0.369	.948c
	Residual	0.043	24	0.002		
	Total	0.049	34			
3	Regression	0.007	9	0.001	0.422	.911d
	Residual	0.043	25	0.002		
	Total	0.049	34			
4	Regression	0.006	8	0.001	0.486	.855e
	Residual	0.043	26	0.002		
	Total	0.049	34			
5	Regression	0.006	7	0.001	0.524	.809f
	Residual	0.043	27	0.002		
	Total	0.049	34			
6	Regression	0.005	6	0.001	0.576	.746g
	Residual	0.044	28	0.002		
	Total	0.049	34			
7	Regression	0.005	5	0.001	0.644	.668h
	Residual	0.044	29	0.002		
	Total	0.049	34			
8	Regression	0.004	4	0.001	0.706	.594i
	Residual	0.045	30	0.002		
	Total	0.049	34			
9	Regression	0.004	3	0.001	0.806	.500j
	Residual	0.046	31	0.001		
	Total	0.049	34			

Table 4.3 (continued)

ANOVA Results

Model		Sum of Squares	df	Mean Square	F	Sig.
10	Regression	0.003	2	0.001	0.99	.383k
	Residual	0.046	32	0.001		
	Total	0.049	34			
11	Regression	0.002	1	0.002	1.137	.294l
	Residual	0.048	33	0.001		
	Total	0.049	34			
12	Regression	0	0	0	.	.m
	Residual	0.049	34	0.001		
	Total	0.049	34			

a Dependent Variable: Crime Rate 2019

b Predictors: (Constant), Mixed, Reactonly, Proactive, SA, DeptOther, Criminal, Case Load, PS, Budget 2019, Case Priorities, Staffing 2019

c Predictors: (Constant), Mixed, Reactonly, Proactive, SA, DeptOther, Criminal, Case Load, PS, Budget 2019, Case Priorities

d Predictors: (Constant), Mixed, Reactonly, Proactive, SA, DeptOther, Criminal, Case Load, PS, Budget 2019

e Predictors: (Constant), Mixed, Reactonly, Proactive, SA, DeptOther, Case Load, PS, Budget 2019

f Predictors: (Constant), Mixed, Reactonly, SA, DeptOther, Case Load, PS, Budget 2019

g Predictors: (Constant), Mixed, Reactonly, SA, DeptOther, Case Load, Budget 2019

h Predictors: (Constant), Mixed, Reactonly, DeptOther, Case Load, Budget 2019

i Predictors: (Constant), Reactonly, DeptOther, Case Load, Budget 2019

j Predictors: (Constant), Reactonly, DeptOther, Case Load

k Predictors: (Constant), DeptOther, Case Load

l Predictors: (Constant), Case Load

m Predictor: (constant)

Table 4.4

Descriptive Statistics

	Mean	Std. Deviation	N
Crime Rate	0.031102	0.038071026	35
Budget 2019	1431315	1486050.811	35
Staffing 2019	14.57	27.795	35
Case Load	2382.43	1465.674	35
Case Priorities	0.94	0.236	35
React Only	0.83	0.382	35
Proactive	0.97	0.169	35
Mostly Reactive	0.2	0.406	35
Public Safety (PS)	0.83	0.382	35
Community Dev CD)	0.34	0.482	35
Stand Alone (SA)	0.94	0.236	35
Dept. Other	0.89	0.323	35
Criminal	0.97	0.169	35
Admin	0.83	0.382	35
Mixed	0.2	0.406	35

These findings naturally question the concept of whether code enforcement can be considered an extension of, or foundation for, Broken Windows policing. That said, this study is narrowly focused and too simplistic to rule out code enforcement's relationship to the popular crime reduction strategy, but certainly provides no evidence in support of the concept. Although we find multiple experiments in the literature where nuisance abatement (the outcome of code enforcement) has shown positive impacts on crime (Branas, et al., 2011; Kondo, et al., 2018; South, et al., 2022), the findings of this study may indicate that the nuisance abatement benefit is a targeted one, not a broad one. The use of nuisance abatement efforts, such as substandard property maintenance enforcement, blight reduction, or lot-

greening factor into drug activity and violent crime reductions in these experiments where its application was specific and a component of randomized, controlled treatments. This could indicate that the level of intensity of the nuisance abatement application must be greater and deliberate coordination is needed for the application to be effective. These findings may show that this collaboration between specific nuisance abatement efforts and identified locations of recurrent crime needs to be greater than what city code enforcement departments perform in their daily work.

Discussion

Despite the statistical analysis finding no significant correlations between the factors selected and cities' crime rates. The information gathered does provide qualitative analysis in the commonalities of responses regarding code enforcement operations that may prove valuable to future study. When beginning this research, no comprehensive examination of the work code enforcement officers do in California (or elsewhere) was found in the literature. The information gathered through this project can act as the start of a database to understand how similar code enforcement operations are from city to city. Where this information could lead will be examined in the further study section of Chapter 5.

Regarding the responses received in this study, several traits were found that provide insight into how code enforcement operates and why the null hypothesis may have been proven. The responses to the survey found that most (66%, n=23) of code enforcement functions are housed in community development arms of their local governments. Reviewing the respondent cities' websites found that community development departments typically included functions like planning, building permitting, and at times economic development.

No survey question was asked, or information gathered, about how these agencies (or the 2 stand-alone departments identified) may interact with their city's police department. It is conceivable that the lack of correlation found here is not reflective of the place-based criminology literature because the BWT effectiveness of code enforcement occurs only when specifically applied and little daily or ongoing coordination between community development code enforcement functions and police is occurring.

This rationale may lead the reader to assume then that the nuisance abatement functions housed in public safety departments (police and fire) would have shown a more significant positive impact on crime rates. The 6 code enforcement functions operating out of police departments were only 17% in this study, meaning it is unlikely they would have demonstrated a statistically significant correlation between their nuisance abatement work and their crime rates high enough to skew the overall findings. The previous rationale for coordination of the nuisance abatement with crime hot spots may still hold true even in these agencies since this study did not seek information on how deeply the police departments used strategies like hot spot or problem-oriented policing or whether if they were employing these crime suppression strategies, they were including a nuisance abatement application with that work.

This study also found that almost all the cities examined (94%, n=33) operated as generalist departments, focusing on most or all the nuisances listed. This metric (along with the "Enforcement Stance" and the "Caseload" variables) tell us that the work performed by code enforcement departments in California is similar among them but does not tell us more about what level of effort or prioritization may be placed on certain nuisances over others. Even the caseload metric is one that provides insight into the work performed, but no greater

detail to understand the metric better. This study did show that on average code enforcement departments in the cities selected handled over 2300 in 2019, with an average of 14 staff members in code enforcement departments.

The enforcement methods and levels of proactivity were also areas where great commonality was found. A large majority of agencies responded that they employed a combination of the enforcement methods available (80%, n=28), while the study did not seek to identify to what degree each of the methods available was used. A majority also responded that they were "Mostly Reactive" when it came to enforcement stance (80%, n=28). Again, the nature of this study did not seek to understand the degree of this balance between proactivity and reactivity each agency undertook, but it should be noted that only 1 agency responded they were proactive, an outlier small enough not to skew the findings even if this method is impactful on reducing crime as might be indicated by the literature.

Policy Implications

Identifying these commonalities provides some understanding that can assist further study of code enforcement as a field as well as enrich future place-based crime studies which could involve code enforcement more deliberately. The lack of literature providing guidance on the best practices of code enforcement leaves practitioners looking to more general management practices and other theories outside of their own discipline to ensure they are performing efficiently. The few texts available on how to best operate and manage code enforcement departments specifically, reference the broken windows theory benefits as a compelling outcome for performing this work. With the findings of this studying indicating that the general work of code enforcement having no measurable impact on crime as a BWT

strategy, the need for code enforcement practitioners (including anyone working in the regulatory field outside of traditional law enforcement, such as building inspectors, fire marshals, etc.) to have a body of theory that assists them in knowing what strategies or tactics are most effective in improving service to citizens, enhancing community health and safety, and helping solidify code enforcement as a distinct profession in government is critical. This study and its findings could help as a catalyst in that direction. Certainly, this study being limited in time, scope, and resources, just scratches the surface. More direct study of these nuances would need to occur to identify potential benefits of the individual factors studied here.

It is also possible that the literature challenging the effectiveness of BWT policing approaches is supported by the findings of this study. Assuming that the independent variables selected for this analysis are representative measures of code enforcement's work, these findings could reinforce that in fact focusing on minor, quality-of-life type offenses does not impact crime rates. This assertion would contradict the findings of the place-based crime studies like Branas (2011; 2016), Kondo (2018), and South (2022), which all show measurable impacts on crime when nuisance abatement treatments are applied to specific locations; but the many varied elements of the causality of crime cannot rule out that other factors played a measurable effect on the outcomes in those studies.

As previously stated, the results of this study make no value judgement on the work of code enforcement, nor speak to any emphasis that local government leaders should place on how to operate or resources code enforcement departments. This examination should be viewed as a single look at whether in the cities selected, the criteria chosen showed a correlation to crime rates. No conclusions should be drawn from this study alone. Instead,

this research should be used as a starting point for those studying the intersection of Public Administration and Criminology. Additional research further exploring the work that code enforcement agencies (and other city functions) may have on crime, and how they can best be used in service to the public, with code enforcement itself being discipline that lacks more consideration in both of these fields.

Chapter 5: Conclusions

Limitations and Challenges

Determining the effectiveness of a government function like code enforcement presents challenges that stem from two factors. First, the lack of previous quantitative study about what works. Second, the fact that inconsistencies exist in how nuisance abatement functions are performed from city to city. In the sampled cities, the majority of cities performed most or all of nuisance abatement tasks surveyed (n=35), while two were specialized agencies and enforced only two or less of the potential nuisances listed. This obstacle to benchmarking or studying the effectiveness of code enforcement is broadly recognized. Efforts are underway to standardize record keeping, task classification, and benchmarking reporting. The ICMA includes code enforcement benchmarks in its performance management efforts. ICMA has created 5 Key Performance Indicators (KPIs) for code enforcement and adopted common definitions that cities participating in this effort should use to ensure higher levels of consistency when tracking KPIs. Although a needed effort to understanding and improving code enforcement's service to the public, getting ongoing, willing participation in this endeavor appears to be a struggle. The first year of ICMA's bench marking effort, 2013, 138 cities participated in the benchmarking and data reporting. In 2021, this number had dropped to just 3 (ICMA, n.d.). This apparent indifference to participate in focused research at gauging and reporting the work cities perform was also found in the collection of data during this study.

The research for this study focused on medium sized California cities with populations between 100,000 and 200,000. These criteria provided 47 possible cities to

compare data from. With the crime rates being databased at the US DOJ, the cities were relied on to provide the other 7 pieces of information (the independent variables), data that should have been easily reportable and part of public record. The swift and simple collection of this information from many cities was not as straightforward as this would appear. Each city's website was searched to identify staff contact information that would be used to solicit the information. The first hurdle here was to discern what each city calls the function that performs their nuisance abatement function. Titles ranged from the straightforward "Code Enforcement" to more convoluted names like "Community Improvement" and "Neighborhood Services". Once the department providing the nuisance abatement function was identified, finding a direct contact was not commonly clear. Many cities did not include an email or phone number directly to staff, but instead used new citizen service technologies to facilitate connection between the public and city functions. These technologies (third-party web portals or cell phone applications) required the creation of accounts and passwords, were structured to focus solely on reporting violations (no drop-down selection for seeking contact or general questions) or provided automated phone systems to leave a concern and request a call back.

The surveys used for this study were sent to each city, primarily and preferably to a particular management or supervisory level staff member that would most readily have the information needed. When no clear email address was available, the email was sent to the departments' general email addresses found on their websites. If after two weeks no response was received direct contact was attempted via phone or email to city management staff. In several cases, when contact was made with code enforcement department staff, they were hesitant to answer questions or collect information, instead making a referral to their public

records request process (even though this study was requesting no specific records or documents). Public records requests were then sent to over 20 cities, with 12 cities responding that public records requests were not the appropriate vehicle to accomplish a survey like this study was using, and instead referring back to speak directly to department staff for the answers to the survey questions. Three cities simply responded that they did not have or could not provide the information requested.

Participation trends demonstrated in the ICMA benchmarking, illustrated by the data collection experience during this study, demonstrate a need for practitioners at all levels of public administration to be engaged in a better understanding of how data management, performance measures, and participation in research can significantly improve their operations and service to the public. In turn hopefully increasing participation in future research.

Future Study

With the findings of this study showing that no measurable correlation was found between the elements of code enforcement operations selected and cities' crime rates, the question about why cities do code enforcement remains unanswered. To be most certain, that question is best answered through future study (both quantitatively and qualitatively), but the commonalities found in responses to this study's survey do tell us something about what code enforcement is doing. The fact that almost all of the agencies surveyed performed code enforcement when a complaint was received, while only one reported being proactive about enforcement, indicates a significant focus on a customer service style to code enforcement in California. Meaning that this could indicate a desire by cities to ensure they

are responding to the concerns of constituents and not troubling property or business owners who may violations present because no complaint has been received.

Cities being the layer of government most connected with citizens and charged with the delivery of municipal services would dictate that customer service must be a significant priority to the elected officials and executives charged with leading cities and towns (Holzer & Schwester, 2011). The findings from this study reinforce that code enforcement officers are relied upon to be responsive to citizen concerns that fall within their purview. Being responsive to complaints does allow code enforcement officers to investigate and address concerns brought to them and ensure that violations are identified, documented, and corrected making their cities cleaner and safer. This is after all the primary function of the code enforcement department. But being responsive and available to citizens in this manner can also provide a reassurance that the city is there for its residents and businesses, a secondary service that bolsters a positive view of the local government in the eyes of the public.

Beyond broad benefits like customer service performed by code enforcement officers the benefits of code enforcement work could manifest itself in support for other government disciplines. Code enforcement officers provide aid and support to other departments such as fire prevention inspectors (Shilling & Hare, 1994) and as previously discussed police officers (Skogan, 1992; Eck & Wartell, 1998). These other possible benefits are just that, possible, qualified with lots of "could" and "might" phrasing. Only through additional study can the value of code enforcement officers be better understood and in turn their field further refine its work to improve service to their communities. This future study should be both qualitative and quantitative. By developing deeper knowledge of what works best in nuisance abatement

and the experiences of those working in, with, and being served by code enforcement departments local government leaders will be able to better design policy and practice to leverage this work to its fullest extent.

Future Quantitative Study

This study only performed an examination of certain components of code enforcement operations in California. Additional study is needed both in replication of what has been done here as well as expanding the scope to encompass other operational elements or strategies, and broader and different geography. Research using other elements of code enforcement operations might find that even without a deeper coordination between police and code enforcement efforts, aspects of what code enforcement officers do daily may have measurable impacts on crime and public safety. Exploring the ways in which code enforcement operates in states outside of California, or in different sized cities than was selected here may find correlations between BWT strategies and the daily work that code enforcement does.

Conversely, additional study is needed partnering code enforcement efforts closely with police officers to find if the previous benefits found in place-based criminology or POP studies might be enhanced. When considering that crime itself is concentrated and not a jurisdictional-wide occurrence having police working everywhere, all the time (Weisburd, et al., 2016), it would make sense that code enforcement's work measured only broadly across their jurisdictions would show no impact on crime. Instead, developing code enforcement-centric research that focuses on the micro-geography that place-based criminological studies focus on could provide more insight into a certain effect of nuisance abatement on crime.

Combining the methodology from previous hot spot policing studies and proactive foot patrol research that has demonstrated measurable benefits to reducing crime in certain micro-geographic places (Telep, et al., 2014; Ratcliffe, et al.., 2011) with nuisance abatement applications performed by code enforcement in those same hot spots might also find enhancements to previous research while also developing the code enforcement body of theory.

Future Qualitative Study

In addition to these areas of study, research should be performed to understand how the work of code enforcement or nuisance abatement is experienced by those that perform it, those that oversee it, and those that receive the services (as both reporting party and violator). Phenomenological research methods can help provide this additional element of knowledge to an emerging code enforcement body of knowledge. Unlike the future study of hot spot crime and code enforcement that is performed from a normative, positivist view, a phenomenological approach could provide insight that cannot be gleaned from numbers and figures. With local government being about service to people, knowing more about how those people experience what is being provided is critical to ensuring that they are getting the most from their leaders.

A phenomenological framework is best for exploratory studies in lesser-known fields, like code enforcement, for two reasons. Phenomenology assists us in understanding things that occur as those things are experienced by those affected (Elias, 2010). This approach would allow researchers to identify commonalities apparent in how the work code enforcement officers perform is perceived, both internally by those in government and those

externally who are impacted by this work. Phenomenology being a research method looking at what subjects think about an experience (Hesse-Biber, 2017), it could be an effective approach to authenticating the views of those involved in nuisance abatement by local government.

Understanding the views of people impacted by code enforcement is important in knowing what strategies to emphasize and which to modify. Taking in additional and different information than the quantitative analysis does will allow leaders to view more than the inputs and outputs of code enforcement than were explored in this study and instead consider the actual outcomes of code enforcement cases and staffs' interactions with the public. Many successful BWT strategies are constructed on the belief that improved quality-of-life results from the enforcement of minor offenses (Skogan, 1992; Bratton & Knobler, 1998; and Maple & Mitchell, 1999). These types of offenses, specifically when they are property maintenance related conditions, often fall into the realm of nuisance abatement. Any serious body of knowledge concerning the effectiveness of quality-of-life enforcement should seek to know if the work being done does in fact improve those residents' perceptions of their quality-of-life?

Through surveys and interviews, researchers approaching future study from a phenomenological perspective can uncover information about whether the people impacted are in fact appreciative of the use of nuisance abatement, as a supplement or replacement of, traditional law enforcement. This type of research intends to provide insight that can inform any alteration or creation of policy and practice striving to reduce crime and improve quality-of-life.

Conclusions

Perhaps effective crime prevention strategies related to property maintenance, as shown in Branas, et al. (2011, 2016, 2018) and Moyer, et al. (2019), are circumstances where a significant correlation or likely causation is found in a specific type of nuisance abatement at a specific place, experiencing specific types of crime. Understanding this fully would have required this study to be more focused on the specific nuisance abatement case work undertaken by each city not the mere presence of a city's code enforcement department. As this study's intention was to explore a possible crime reduction benefit to the daily work of code enforcement and not specific micro-geographic treatments of nuisance abatement on crime, it is not surprising nor disappointing that the null hypothesis was proven and that no measurable effect on crime rates was found. This study was intended to be seminal in an exploration to understand the benefits cities derive from code enforcement and these findings inferring the exclusion of a broad criminological benefit is still helpful. Future research should explore the elements selected here in a deeper manner, elements like the types of disorder violations city's focus on, or whether a city is proactive or reactive (complaint driven) in their nuisance abatement work and those relationships to crime reduction. This study's findings do not mean that nuisance abatement is not a necessary and valuable activity for local government to perform, but only indicate that perhaps its value may rest in the customer service, civic pride, or public health factors that cities strive for.

Repeatedly, the literature on BWT, place-based criminology and problem-oriented policing strategies show that non-criminal enforcement methods like code enforcement applied to locations where recurrent crime exists has a statistically significant impact on that crime. However, this study proved the null hypothesis that none of the measures selected

showed a correlation to the cities' crime rates. These findings should not be taken to discount the value and work code enforcement departments do, nor the value that abating nuisances brings to a community. The most poignant conclusion drawn from this research is that it is most beneficial when code enforcement and police focus on specific places, applying both nuisance abatement and criminal enforcement treatments to impact crime.

This conclusion is arrived at by considering the extant literature pointing to reductions in criminal activity found in specific experiments that used nuisance abatement treatments at micro-geographic locations, juxtaposed against the specifics of this study finding no broad benefit that would have influenced those previous experiments. Code enforcement actions driving crime reductions (like those applied in the studies cited) are specific to their application tactics and that code enforcement generally applied will not garner the results that BWT policing seeks. This finding could infuse energy into cities that continue to struggle with effective crime reduction efforts. Understanding that one benefit that code enforcement officers provide to their cities could be crime reduction or prevention, but only when their work is closely coordinated with that of police, provides insight for local government and police leaders to glean and refocus strategies around.

Finding no significant correlation that the mere existence of code enforcement impacts crime despite evidence that nuisance abatement itself can impact specific crimes in specific locales creates an avenue for new thinking on how well connected and coordinated police officers and code enforcement officers are. This study did not seek information specific to how often or well these two disciplines work together, but the experiments from the literature presented here and relied on in forming the hypothesis do. What South (2022), Braga (1999), and Kondo (2018) tell us is that when locations that have serious and recurrent

crime are selected, nuisance abatement is applied, and the results are measured against control groups, the specific applications of nuisance abatement applied did show a connection to a reduction of crime in those places. Those findings, when taken with the findings of this study, would appear to dictate that cities who have police departments and code enforcement officers working in silos will not see the benefit that cities who are fostering deep collaboration between these disciplines will. It is the joining of efforts in a multidisciplinary approach that would see crime reduction results.

The theory that focused effort impacts crime is the same for police as it has been found here for code enforcement. Decades of study have shown that the mere staffing of a police department does not impact crime, it is what the officers do with their time and effort that impacts crime. This concept should be (and appears from these findings to be) the same for code enforcement officers' work. From the Kansas City Preventative Patrol experiment in 1972, through foot patrol experiments in Philadelphia in 2009, the types of tactics police officers use during their workday are shown to have improved outcomes when they are purposeful and focused (Kelling, et al., 1974; Ratcliffe, et al., 2011).

This rationale that how staff works improves outcomes would seem straight forward, but the literature is lacking in studies that explore the benefits of this approach in code enforcement. As seen in the work needed at gathering data for analysis here, code enforcement departments are not found to be eager partners in the study of their work. This does them and the field of local government a disservice. Knowing that the focused efforts of police officers can reduce and prevent crime. And knowing that the application of nuisance abatement to crime hot spots also reduces and prevents crime, then building on hot spot experiments and placed-based crime studies by adding a focused and measurable

nuisance abatement application should result in the findings this study set out to prove, that code enforcement can reduce crime. These and other future studies previously mentioned could help local government leaders, code enforcement professionals, and police executives craft more effective strategies for providing public safety and a high quality-of-life to the citizens they serve. And isn't that truly the aim of Broken Windows Theory policing?

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Appendix A



Office of Research and Sponsored Programs | West Chester University | Ehinger Annex
West Chester, PA 19383 | 610-436-3557 | www.wcupa.edu

Dec 5, 2022 9:27:36 AM EST

To: Shane Diller
Public Policy and Administra.

Re: Expedited Review - Initial - IRB-FY2023-103 Nuisance Abatement as Broken Windows Policing

Dear Shane Diller:

Thank you for your submitted application to the West Chester University Institutional Review Board. Since it was deemed expedited, it was required that two reviewers evaluated the submission. We have had the opportunity to review your application and have rendered the decision below for Nuisance Abatement as Broken Windows Policing .

Decision: Approved

Selected Category: 4. Collection of data through noninvasive procedures (not involving general anesthesia or sedation) routinely employed in clinical practice, excluding procedures involving x-rays or microwaves. Where medical devices are employed, they must be cleared/approved for marketing. (Studies intended to evaluate the safety and effectiveness of the medical device are not generally eligible for expedited review, including studies of cleared medical devices for new indications.)

Sincerely,
West Chester University Institutional Review Board

IORG#: IORG0004242
IRB#: IRB00005030
FWA#: FWA00014155

Appendix B

Greetings,

My name is Shane Diller and I am a Doctoral Candidate at West Chester University performing a study related to code enforcement's impact on crime rates. I'm contacting you to assist in gathering publicly available information regarding selected California cities' code enforcement programs. My research will analyze whether various factors related to code enforcement departments' activity correlate to crime rates the cities report to the U.S. Department of Justice, via Uniform Crime Reports (UCRs). This study has been approved by the Institutional Review Board (IRB) at West Chester University, (IRB #00005030). To complete this study on schedule, I would appreciate your response by January 20, 2022.

To complete this study, I need to understand the answers to the following questions:

1. What was your department's/division's total budget in 2019?
2. What was your department's total staffing in 2019 (If there was turnover or changes, an average is fine)?
3. From the options below, how would you describe how your department/division performs code enforcement?
    a. Proactively (only patrolling for violations)
    b. Mostly proactively, with some response to complaints
    c. Mostly reactively, primarily responding to complaints while addressing some violations proactively when staff observes them?
    d. Reactively (only in response to complaints)
4. What was your department's total case load in 2019?
5. If your code enforcement function is not a standalone department, what department houses this function?
6. From the list below, what code violations/nuisances does your department address?
    a. Property Maintenance/blight
    b. Abandoned Vehicles
    c. Illegal/unpermitted business activity
    d. Unpermitted construction
    e. Unlawful camping/vagrancy
7. Do you enforce your codes:
    a. Criminally
    b. Civilly (lawsuits, injunctions, or receiverships)
    c. Administratively (administrative citations, fees, abatements)
    d. A combination of any two of the above

Your responses will be coded anonymously into the studies datasets and no staff names, departments, or cities will be identified. The data analysis will compare only the coded responses to the city's crime rate and those findings will be presented in comparison to other similar sized cities anonymously.

If you have any questions, or need clarification on this study or these questions, I encourage your engagement at your earliest convenience. I can be reached at this email or at (916) 275-0605. I thank you in advance for your assistance in this important project.